

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 26, 2018

Honorable K. Gnos
Judge of the Superior Court
County of Sonoma
600 Administration Drive
Santa Rosa, CA 95403

Re: Gonzales, Angelo Carlos
CDC No.: G49941
Case No.: SCR482609
Date of Sentence: 01/14/2009

Dear Honorable K. Gnos:

The purpose of this letter is to provide the court with authority to resentence Angelo Carlos Gonzales pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Gonzales was sentenced in 2009, and was convicted of section 245, subdivision (b), ASSAULT W/SEMI AUTO HDGN. Two enhancements were imposed; 12022.5(a) and 186.22(b)(1)(C). Both enhancements were attached to Inmate Gonzales's section 245 offense.

In light of these convictions, please consider *People v. Rodriguez* (2009) 47 Cal.4th 501. In *People v. Rodriguez*, the California Supreme Court held that the trial court should not have imposed an enhancement for both Section 12022.5(a) and Section 186.22 (b)(1)(C), because both enhancements were imposed based on the defendant's firearm use. (*Ibid.*) In *Rodriguez*, the defendant was convicted of Section 245(a)(2), assault with a firearm. (*Id.* at p. 504.) The trial court imposed a sentencing enhancement for personal use of a firearm under Section 12022.5. This enhancement made defendant's crime violent per Section 667.5. (*Id.* at p. 505, 509) In addition, the trial court imposed an enhancement for Section 186.22(b)(1)(C); defendant qualified for this enhancement because he committed a violent felony. (*Id.* at p. 505.) The court held that both enhancements were based on Defendant's firearm use during the commission of a single offense, therefore under Section 1170.1, only the greater of the two enhancements should have been imposed.

Based on the above facts and case law, it appears that inmate Gonzales's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he or she be resentenced in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Determinate
Minute Order
Information/Complaint

cc: Honorable Gary Nadler, Sonoma County Presiding Judge
Sonoma District Attorney
Private Attorney

649941

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SONOMA			ENDORSED FILED FEB 09 2009 SUPERIOR COURT OF CALIFORNIA COUNTY OF SONOMA		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT ANGELO CARLOS GONZALES		DOB: 12-05-81			
AKA:		SCR 482609 -A			
CII NO.: 123028275		-B			
BOOKING NO.: 9946875		☐ NOT PRESENT		-C	
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT		-D	
DATE OF HEARING 01-14-09		DEPT. NO. 1		JUDGE K. GROSS	
CLERK P. SCHULZE		REPORTER S. BERG		PROBATION NO. OR PROBATION OFFICER 114374 ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE R. WANER		COUNSEL FOR DEFENDANT G. SCOTT		☐ APPTD.	

1. Defendant was convicted of the commission of the following felonies:

- ☒ Additional counts are listed on attachment
1 (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (Indicate to whom by)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
4	PC	245(b)	ASSAULT W/SEMI AUTO HDGN	2006	03-24-08	X			M							6	0
2	PC	245(b)	ASSAULT W/SEMI AUTO HDGN	2006	03-24-08	X									X		
8	PC	245(b)	ASSAULT W/SEMI AUTO HDGN	2006	03-24-08	X			M			X				2	0
10	PC	245(b)	ASSAULT W/SEMI AUTO HDGN	2006	03-24-08	X			M						X		
13	VC	2800.2(a)	EVADE POLICE OFFICER	2006	03-24-08	X			M			X					8
15	PC	186.22(a)	PART. IN CRIM. STREET GANG	2006	03-24-08	X			M	X						(2)	(0)

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
4	12022.5(a)/(d)	4Y	186.22(b)(1)(c)	10Y			14 00
2	12022.5(a)/(d)	S	186.22(b)(1)(c)	S			
8	12022.5(a)/(d)	1Y4M	186.22(b)(1)(c)	3Y4M			4 8
10	12022.5(a)/(d)	S	186.22(b)(1)(c)	S			
13	186.22(b)(1)(a)	1Y					1 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: 1 8

7. ☒ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 30 00

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

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PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: ANGELO CARLOS GONZALES

SCR 482609

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$1,000 per PC 1202.4(b) forthwith per PC 2085.5; \$1,000 per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.
Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.
Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.
Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ ☒ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 11, below. ☐ * Victim name(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$20.00 per PC 1465.8.

10. TESTING a. ☐ Compliance with PC 296 verified b. ☒ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify):

11. Other orders (specify):

SEE OTHER ORDERS ON FORM CR-292

12. IMMEDIATE SENTENCE:

☐ Probation to prepare and submit
Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: HISPANIC

13. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing.
b. ☐ at resentencing per decision on appeal.
c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC1170(d).)
e. ☐ other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	1196	1040	156 ☐ 4019 ☒ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
01-14-09		DMH ☐ CDCR ☒ CRC ☐	

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ other (specify):

I hereby certify the foregoing to be a correct abstract of judgment made in this action.

DEPUTY'S SIGNATURE

DATE

02-09-09

CR-290-A

SCR 482609

-A

-B

©

•D

- [illegible]

- [illegible]

- | ENHANCEMENT | TIME IMPOSED
OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED
OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED
OR "S" FOR STAYED | TOTAL |
|-------------|-----------------------------------|-------------|-----------------------------------|-------------|-----------------------------------|-------|
| 667.5(b) PC | 1Y | | | | | 1 0 ✓ |
| | | | | | | |

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